

Request for Review of a Structural Case

To: European Center for Constitutional and Human Rights (ECCHR), Berlin — Institute for Legal Intervention (intake)

Parallel copy (policy / monitoring): Deutsches Institut für Menschenrechte (DIMR)

From: Dr. Artiom A. Kovnatsky, German and Israeli citizen, Berlin

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Subject: Request for review of a structural case — automated “unread” closure of human-rights-flagged citizen submissions by a German federal authority (Federal Foreign Office / “FACIL” system); compatibility with the duty of diligent and objective administration and Art. 1(3) Basic Law

1. The systemic question, in one paragraph

A German federal authority — the Federal Foreign Office (Auswärtiges Amt) — operates an automated case-management system (“FACIL”) which, by the authority's own written admission, closes citizen submissions “unread” (“ungelesen”) after an automated reply is dispatched. Where a submission carries a marker of a serious human-rights concern, this content-blind automated closure raises a structural question: is such a design compatible with the binding of all state authority to fundamental rights (Art. 1(3) Basic Law), with the administration's duty to handle petitions objectively and on their merits, and with the principle of proportionality? This is not a request to litigate an individual fate. It is a request to examine a system.

2. The submitter and the standing hook

I am a German citizen. I submitted human-rights concerns to my own government's Foreign Office and received automated non-handling. The cleanest legal frame is therefore domestic and procedural — how the German state processes a German citizen's human-rights submissions — not extraterritorial protection duties. I state the jurisdictional point at the outset so that it is clear it has been considered: the individuals whose situations prompted my submissions were in Ukraine and were not under German jurisdiction. They are relevant here as illustrations of the content that was closed unread, not as victims of a German protective duty under the ECHR.

3. The evidentiary anchor — the authority's own words

The Foreign Office states that it processes approximately 260,000 written citizen inquiries per year through FACIL. In the official case correspondence for my file (ticket 759bc4c4-387d-49e7-9e16-9a2b56c9da0e; objection ref. R20-511.03 IFG 123-2026), the authority states, verbatim, that to manage volume, citizen inquiries on many topics are “closed unread by the system after an automated reply is sent” (“nach Versand einer automatischen Antwort durch das System ungelesen geschlossen”). On my subsequent freedom-of-information request, the authority

refused access (objection decision of 2 July 2026) on the ground that no responsive internal analyses or records exist, because such inquiries are routinely closed without substantive handling. Taken together, these are the factual core: a documented design of unread mass-closure, and a documented absence of any substantive record of handling.

4. The illustrative signals (by initials only)

My submissions concerned documented accounts of forced recruitment and detention. Two are representative:

- **Mr D.K.** — a Ukrainian conscientious objector; audio and documentary evidence submitted (ticket above, from 21 September 2025). The file was closed within the automated process; the substantive reply of 20 November 2025 addressed general policy and expressly declined to comment on the individual matter.
- **Mr Y.C.** (Kharkiv; last family contact 9 June 2026) — submitted through the same documentation process. **Mr Y.C. is now deceased, as reported by his family.** No causal link between the FACIL closure and his death is asserted; his case is cited as the immediate occasion for this submission — the concern is that signals of this nature are closed unread before any human assessment, and that this recurs.

These individuals are identified here by initials only. Full documentation will be provided to ECCHR under appropriate confidentiality, and the consent of the bereaved family will be sought before any public identification.

5. The legal questions this raises

(a) Duty of diligent and objective handling — whether an automated design that closes submissions unread can satisfy the administration's obligation to consider petitions objectively and on their merits.

(b) Art. 1(3) Basic Law — whether a system that does not register the content of a submission before closing it is compatible with the binding of all state authority to fundamental rights, where the submission carries a serious human-rights marker.

(c) Proportionality — whether it is proportionate for a content-blind routine, financed from public funds, to treat a submission flagging a grave rights concern identically to a routine mass inquiry. No allegation of deliberate political motive is made; the question is one of design and proportionality, not intent.

(d) The broader accountability context — this case exemplifies a recognized gap in automated decision-making: the “the system decided, there are no logs, the ticket was closed automatically” posture, as it appears in public administration. It is noted strictly as context, and not as an allegation of any coordination, that an analogous posture is encountered in the private-platform sphere; the point is raised only because the underlying accountability gap in automated systems is the structural issue worth examining.

6. Domestic posture (grounded and actionable)

- *Freedom-of-information track*: objection refused 2 July 2026; a Verpflichtungsklage narrowly framed on the objectively existing processing metadata of the FACIL system (logs, timestamps, routing identifiers, including a documented staff handling entry) has been filed with the Verwaltungsgericht Berlin (Az. 2 K 202/26; parallel interim relief application, Az. 2 L 201/26, both dated 26 June 2026).
- *Data-protection track*: a request under Art. 15 GDPR is pending; a complaint under § 12 IFG has been lodged with the Federal Commissioner for Data Protection and Freedom of Information (BfDI, ref. DI3-722/002 II#0517, Dok. 66247/2026).

These provide a factual-record foundation on which a structural case can build.

7. What is requested of ECCHR / DIMR

An assessment of whether this constellation is suitable as a structural / strategic case on (i) automated decision-making in public administration and the duty of diligent, objective handling, and (ii) the accountability gap in automated systems (“automated closure, no records”). I can provide the complete documented file: the original submissions, the ticket record, the authority's correspondence and admissions, and the 2026 decisions.

8. Data protection

All third-party personal data will be provided under confidentiality and pseudonymized; the consent of affected persons and of the bereaved family will be obtained before any public use.

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